

THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR

MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.144 OF 2022

(Against the judgment dated 08.03.2022, passed by the Lahore High Court, Lahore, in Criminal Appeal No.243 of 2017)

Muhammad Munawar

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s) : Ms. Amna Bano, ASC

For the State : Mr. Sajjad Hussain, DPG Punjab

Assisted by : Ms. Tayyaba Munir, Law Clerk

Date of hearing : 31.03.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Petitioner, Muhammad Munawar (formerly Munawar Masih), was tried by the learned trial Court in FIR No. 409/2013 dated 10.07.2013, registered under section 302 of the Pakistan Penal Code (“**PPC**”) at Police Station Dijkot, Faisalabad for committing the murder of his sister, Mst Shabana Bibi (“**deceased**”). Upon conclusion of the trial, the learned Court, vide judgment dated 28.02.2017, convicted the petitioner under section 302(b) PPC and sentenced him to imprisonment for life along with payment of compensation in the sum of Rs. 100,000/- to the legal heirs of the deceased under section 544-A Cr.P.C., and in default thereof to undergo four months’ simple imprisonment. The benefit of section 382-B Cr.P.C. was also extended to him. Feeling aggrieved by his conviction and sentence, the petitioner preferred an appeal before the Learned Lahore High Court; however, the same was dismissed and the conviction and sentences were maintained, leading to the filing of the instant petition before this Court.

2. The prosecution case, in brief, is that on the day of occurrence at about 12:30 p.m., the complainant/PW5, along with his family members, including Shakeel and Shahbaz (PW-07), was present at his residence when the petitioner-convict arrived there. Upon his arrival, the petitioner asked the complainant's daughter to bring him water, whereupon she stepped out of the room. In the meantime, the petitioner, armed with a carbine, fired a shot at Mst. Shabana Bibi, which struck her on the right side of her forehead above the eye. The complainant and others present attempted to apprehend the accused; however, he managed to escape while brandishing his weapon. Mst. Shabana Bibi succumbed to the injury at the spot. The motive attributed to the occurrence is that the complainant and the deceased had contracted a marriage of their own choice approximately 16 to 17 years prior to the incident, which was disapproved of by the petitioner, who, bearing a grudge on that account, allegedly committed the murder. The occurrence was witnessed by the complainant and other persons present at the scene.

3. We have heard the learned counsel for the petitioner and learned DPG at length and have also gone through the record with their able assistance.

4. The case at hand is that of sororicide, the killing of one's own sister. It is profoundly unfortunate that siblings who share a bond of companionship, trust, and mutual care from childhood should act in betrayal of this bond. When a brother takes the life of his own sister, the very person he is expected to protect, cherish, and love, it transcends mere criminality and becomes a grave moral rupture. Traditionally, a brother's care for his sister has been seen as a sacred responsibility, and to forsake this duty strikes at the heart of family bonds and the moral fabric of society. Sororicide is an unnatural breach of trust that reverberates through the conscience of the community but alarmingly, such tragedies are becoming increasingly visible in our society, shattering families and leaving society itself to grapple with the loss of its most fundamental bonds.

5. Now coming towards the merits of this case. The occurrence in the present case took place on 10.03.2013 at about 12:30 p.m., whereas the matter was reported to the police on the same day at 01:40 p.m., with a delay of merely one hour and ten minutes, despite the police station being situated at a distance of approximately 13 kilometers from the place of occurrence. Such prompt reporting of the FIR rules out the possibility of deliberation, consultation, or fabrication. It is of significant import that in the FIR, which was lodged promptly, the complainant specifically nominated the petitioner as the sole accused, attributing to him a definite and active role of causing the fatal firearm injury to the deceased. The complainant, being the husband of the deceased, was well acquainted with the petitioner, who was the brother of his wife; thus, there remains no conceivable doubt regarding the identification of the assailant. The prompt nomination, coupled with the close familial familiarity, effectively rules out any possibility of mistaken identity. Furthermore, it is a settled principle of criminal jurisprudence that substitution of the real culprit is a rare phenomenon, particularly in cases where the eyewitness has witnessed the brutal murder of close relative. In such circumstances, it is highly improbable that the actual offender would be allowed to escape while an innocent person is falsely implicated. The record is bereft of any material suggesting ulterior motive or animus on the part of the complainant to falsely involve the petitioner in the murder of complainant's wife who was also the mother of his 5 children, thereby reinforcing the veracity of the prosecution case.

6. The ocular account of the occurrence, as furnished by the PW5 and PW7, inspires full confidence, as both witnesses were natural inhabitants of the scene and their presence at the relevant time stands firmly established. They consistently deposed that the petitioner, armed with a carbine, fired a fatal shot at the deceased, and despite rigorous and searching cross-examination, their testimony remained unshaken on all material particulars. Significantly, the ocular version finds complete and unimpeachable

corroboration from the medical evidence. The medical examination reveals a devastating firearm injury on the right side of the face and head, causing extensive damage to the skull, membranes, and brain, with brain matter protruding and pellets recovered from within, unequivocally establishing that the injury was sufficient in the ordinary course of nature to cause death which corroborates with the mode and manner of occurrence described by complainant in FIR. This striking consistency between the ocular account and the medical findings reinforces the prosecution narrative, rendering it a cogent, reliable, and confidence-inspiring piece of evidence, leaving no room for doubt regarding the manner of the occurrence.

7. The alleged motive underlying the occurrence, as suggested by the prosecution, was that the complainant and Mst. Shabana Bibi (deceased) had solemnized a marriage of their own choice approximately seventeen years prior to the incident, which purportedly displeased the petitioner and prompted him to commit the offence. However, this purported motive does not withstand scrutiny. The couple had lived together for nearly two decades and were blessed with five children during this period, without any untoward incident, rendering the suggested grudge implausible. Moreover, the prosecution has failed to adduce any evidence to substantiate this alleged motive. The learned High Court, therefore, correctly disbelieved the motive as recorded in paragraph 10 of the impugned judgment.

8. Insofar as the recovery of the 12-bore carbine on the pointing of the petitioner is concerned, it bears noting that the report of the Punjab Forensic Science Agency (Exh. PL) merely establishes that the weapon was mechanically operational. Crucially, there is no evidence demonstrating that the fatal shot was actually discharged from this firearm. The learned High Court, therefore, rightly disbelieved this piece of evidence, as reflected in paragraph 11 of the impugned judgment.

9. In view of the foregoing discussion, it may be safely concluded that even if the Court were to exclude the evidence pertaining to

motive and recovery, the benefit of which has already been afforded to the petitioner, the prosecution has nonetheless succeeded in establishing its case against the petitioner for the murder of Mst. Shabana Bibi through confidence-inspiring ocular account furnished by the aforementioned witnesses, which finds strong corroboration in the medical evidence on record. The confluence of ocular and medical evidence leads this Court to the irresistible conclusion that the conviction and sentence imposed upon the petitioner are neither baseless nor tainted with any legal infirmity. Consequently, the learned High Court has rightly convicted and sentenced the petitioner through the impugned judgment. The petition is accordingly dismissed, leave to appeal is refused, and the sentences awarded by the Learned High Court are hereby maintained.

Judge

Judge

Islamabad the
31st March, 2026
Approved for Reporting

Tayyaba Munir, Law Clerk